

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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DAVE STARKEY,

SUMMONS

Plaintiff,

Index No.:

-against-

The Basis of Venue is:
Location of Incident

THE CITY OF NEW YORK, NYPD DETECTIVE
ANTONIO ZORRILLA, Shield No. 2744, and NYPD
POLICE OFFICERS JOHN DOES NUMBERS ONE
THROUGH TEN,

Plaintiff designates Kings
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 19, 2022

Yours, etc.

David R. Kline

David R. Kline, Esq.

Shulman-Hill, PLLC

Attorneys for Plaintiff

1 State Street Plaza, 15th Floor

New York, New York 10004

(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD DETECTIVE ANTONIO ZORRILLA, SHIELD NO. 2744, Narcotics Borough
Brooklyn North; *via* Detectives Office - Narcotics Division, Room 110-A, 1 Police Plaza,
NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

DAVE STARKEY,

INDEX NO.:

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD DETECTIVE
ANTONIO ZORRILLA, Shield No. 2744, and NYPD
POLICE OFFICERS JOHN DOES NUMBERS ONE
THROUGH TEN,

JURY TRIAL DEMANDED

Defendants.

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Plaintiff DAVE STARKEY, by his attorneys, Shulman-Hill, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On May 17, 2020, at approximately 2:00 a.m., Plaintiff Dave Starkey, while lawfully in the vicinity of Throop Avenue and Lexington Avenue, County of Kings, New York, was subject to an unlawful arrest, detention, and excessive use of force by defendant Police Officers. In addition, Plaintiff was subjected to 30 hours in unlawful custody at the 79th Precinct and Central Bookings, resulting in lasting mental and emotional injury. Plaintiff was deprived of his constitutional, common law and statutory rights when the individual defendants unlawfully stopped, detained, subjected to excessive force, passed along false accusations to prosecuting attorneys, and engaged in the malicious prosecution of Plaintiff, in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Dave Starkey is a resident of the state of New York.

3. NYPD Detective Antonio Zorrilla, Shield No. 2744, is and was at all times relevant herein an Officer with the New York City Police Department.

4. NYPD Detective Antonio Zorrilla, Shield No. 2744, is being sued in his individual and official capacity.

5. Currently and at all times relevant herein, upon information and belief, NYPD Detective Antonio Zorrilla, Shield No. 2744, was assigned to the Narcotics Borough Brooklyn North of the NYPD.

6. As the Narcotics Bureau Brooklyn North is an assignment that maintains a covert location, NYPD Detective Antonio Zorrilla, Shield No. 2744, therefore accepts service by the NYPD via the Detectives Office, Room 110-A, at 1 Police Plaza.

7. NYPD Police Officers John Does Numbers One through Ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

8. NYPD Police Officers John Does Numbers One through Ten are being sued in their individual and official capacities.

9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

11. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

12. In accordance with New York State law and General Municipal Law Section 50, Plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on March 24, 2022.

13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

14. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

15. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

16. On May 17, 2020, at approximately 2:00 a.m., Plaintiff was lawfully present in the vicinity of Throop Avenue and Lexington Avenue, County of Kings, New York, when the defendant Police Officers unlawfully arrested Plaintiff without probable cause or legal justification.

17. At the time of the incident, Plaintiff was being driven home from a friend's house.

18. When Plaintiff reached the vicinity of the intersection of Throop and Lexington Avenues, defendant police officers turned on their emergency lights and sirens and pulled the vehicle over.

19. While the vehicle was pulled over on the side of the road, it was clear to all occupants that they were not free to leave.

20. Defendant officers ordered the occupants to exit the vehicle. All complied with defendant officers' illegal command.

21. Absent a valid judicial warrant, sufficient probable cause, or consent, plaintiff was then subjected to an unlawful search of his person by defendant officers. The unlawful search yielded no contraband whatsoever.

22. Defendant officers then commanded plaintiff and his friends to get back into their vehicle. Before they could even reach for the door handles, defendant officers commanded them to remain outside of the vehicle.

23. Defendant officers then performed a warrantless search of the vehicle.

24. Defendant officers never asked for permission to search the vehicle, nor did they possess sufficient probable cause to perform a warrantless search.

25. Defendant officers then grabbed plaintiff, pinned his arms behind his back, and shackled his wrists together with metal handcuffs.

26. At no point during this illegal arrest did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

27. At no point did Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

28. Plaintiff did not resist arrest.

29. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by the defendant officers without legal justification or probable cause, placed in the back of an NYPD vehicle, and transported to the 79th Precinct against his will.

30. Upon his arrival at the 79th Precinct, the Plaintiff was fingerprinted, photographed, and placed in a holding cell with other prisoners who were not wearing masks.

31. The following evening, on May 18, 2020, the plaintiff was transported to Kings County Central Bookings, processed, and placed in another holding cell.

32. While Plaintiff was in custody, the defendant police officers provided the Kings County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff committed a crime.

33. Specifically, the defendant police officers falsely stated to the Kings County District Attorney's Office that plaintiff was engaged in Criminal Possession of a Firearm.

34. On May 19, 2020, the plaintiff was arraigned in criminal court, charged with crimes he did not commit, and released on his own recognizance.

35. Plaintiff had to attend approximately four (4) more court appearances for the false criminal charges.

36. On or about October 29, 2021, all charges against the plaintiff were dismissed and sealed, as the plaintiff had committed no crime.

37. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably arresting, confining, and using excessive force against Plaintiff.

38. The unlawful arrest, confinement, and use of excessive force by the individually named defendants caused Plaintiff to sustain economic, psychological, and emotional trauma.

FIRST CAUSE OF ACTION
Unlawful Stop, Question, and Search

39. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

40. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

41. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

42. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

43. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

44. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SECOND CAUSE OF ACTION
Violation of Fourth and Fourteenth Amendment Rights:
Unlawful Seizure and Deprivation of Liberty

45. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

46. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

47. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION
False Imprisonment

48. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

49. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

50. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

51. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

52. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

53. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights: Excessive Force

54. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

55. The use of excessive force by defendants by, amongst other things, seizing and restraining him with over-tight metal cuffs, constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

56. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

57. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

58. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

59. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Failure to Intervene

60. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

61. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

62. Defendants failed to intervene to prevent the unlawful conduct described herein.

63. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subject to other physical constraints.

64. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

65. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

66. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

67. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Violation of Fourth And Fourteenth Amendment Rights: Denial of Right to Fair Trial/Due Process

68. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

69. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

70. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

71. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

72. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free of deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

73. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

74. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

75. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

76. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: economic, emotional, and psychological injuries.

TENTH CAUSE OF ACTION
Malicious Prosecution

77. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

78. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

79. Defendants commenced and continued a criminal proceeding against Plaintiff.

80. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which he was prosecuted.

81. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

ELEVENTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

82. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

83. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of his person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

84. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

85. As a result of the above tortious conduct, Plaintiff was caused to suffer mental, economic, and emotional injuries, as well as a deprivation of liberty.

86. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

87. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff DAVE STARKEY demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which

exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 801 *et seq.*.

Dated: New York, New York
May 19, 2022

By: David R. Kline
David R. Kline, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza, 15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD DETECTIVE ANTONIO ZORRILLA, SHIELD NO. 2744, Narcotics Borough
Brooklyn North; *via* Detectives Office - Narcotics Division, Room 110-A, 1 Police Plaza,
NY 10038

ATTORNEY'S VERIFICATION

DAVID R. KLINE, an attorney duly admitted to practice before the Courts of the

State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
May 19, 2022

David R. Kline
DAVID R. KLINE, ESQ.